VII.

PROVOST AND JUDGE.

The lesson which this Degree inculcates is Justice, in decision and judgment, and in our intercourse and dealing with other men.

In a country where trial by jury is known, every intelligent man is liable to be called on to act as a judge, either of fact alone, or of fact and law mingled; and to assume the heavy responsibilities which belong to that character.

Those who are invested with the power of judgment should judge the causes of all persons uprightly and impartially, without any personal consideration of the power of the mighty, or the bribe of the rich, or the needs of the poor. That is the cardinal rule, which no one will dispute; though many fail to observe it. But they must do more. They must divest themselves of preju¬ dice and preconception. They must hear patiently, remember accurately, and weigh carefully the facts and the arguments offer¬ ed before them. They must not leap hastily to conclusions, nor form opinions before they have heard all. They must not presume crime or fraud. They must neither be ruled by stubborn pride of opinion, nor be too facile and yielding to the views and arguments of others. In deducing the motive from the proven act, they must not assign to the act either the best or the worst motives, but those which they would think it just and fair for the world to as¬ sign to it, if they themselves had done it ; nor must they endeavor to make many little circumstances, that weigh nothing separately, weigh much together, to prove their own acuteness and sagacity. These are sound rules for every juror, also, to observe.

In our intercourse with others, there are two kinds of injustice: the first, of those who offer an injury; the second, of those who have it in their power to avert an injury from those to whom it is offered, and yet do it not. So active injustice may be done in two ways — by force and by fraud, — of which force is lion-like, and fraud fox-like, — both utterly repugnant to social duty, but fraud the more detestable.

Every wrong done by one man to another, whether it affect his person, his property, his happiness, or his reputation, is an offense against the law of justice. The field of this Degree is therefore a wide and vast one ; and Masonry seeks for the most impressive mode of enforcing the law of justice, and the most effectual means of preventing wrong and injustice.

To this end it teaches this great and momentous truth: that

wrong and injustice once done cannot be undone; but are eternal in their consequences; once committed, are numbered with the irrevocable Past; that the wrong that is done contains its own retributive penalty as surely and as naturally as the acorn con¬ tains the oak. Its consequences are its punishment; it needs no other, and can have no heavier ; they are involved in its commis¬ sion, and cannot be separated from it. A wrong done to another is an injury done to our own Nature, an offence against our own souls, a disfiguring of the image of the Beautiful and Good. Pun¬ ishment is not the execution of a sentence, but the occurrence of an effect. It is ordained to follow guilt, not by the decree of God as a judge, but by a law enacted by Him as the Creator and Legis¬ lator of the Universe. It is not an arbitrary and artificial annex¬ ation, but an ordinary and logical consequence; and therefore must be borne by the wrong-doer, and through him may flow on to others. It is the decision of the infinite justice of God, in the form of law.

There can be no interference with, or remittance of, or protec¬ tion from, the natural effects of our wrongful acts. God will not interpose between the cause and its consequence ; and in that sense there can be no forgiveness of sins. The act which has debased our soul may be repented of, may be turned from; but the injury is done. The debasement may be redeemed by after-efforts, the stain obliterated by bitterer struggles and severer sufferings ; but the efforts and the endurance which might have raised the soul to the loftiest heights are now exhausted in merely regaining what

it has lost. There must always be a wide difference between him who only ceases to do evil, and him who has always done well.

He will certainly be a far more scrupulous watcher over his con¬ duct, and far more careful of his deeds, who believes that those deeds will inevitably bear their natural consequences, exempt from after intervention, than he who believes that penitence and par¬ don will at any time unlink the chain of sequences. Surely we shall do less wrong and injustice, if the conviction is fixed and embedded in our souls that everything done is done irrevocably, that even the Omnipotence of God cannot uncommit a deed, can¬ not make that undone which has been done ; that every act of- ours must bear its allotted fruit, according to the everlasting laws, — must remain forever ineffaceably inscribed on the tablets of Universal Nature.

If you have wronged another, you may grieve, repent, and reso¬ lutely determine against any such weakness in future. You may, so far as it is possible, make reparation. It is well. The injured party may forgive you, according to the meaning of human lan¬ guage; but the deed is done; and all the powers of Nature, were they to conspire in your behalf, could not make it undone; the consequences to the body, the consequences to the soul, though no man may perceive them, are there , are written in the annals of the Past, and must reverbrate throughout all time.

.Repentance for a wrong done, bears, like every other act, its own

fruit, the fruit of purifying the heart and amending the Future, but not of effacing the Past. The commission of the wrong is an irrevocable act; but it does not incapacitate the soul to do right for the future. Its consequences cannot be expunged; but its course need not be pursued. Wrong and evil perpetrated, though ineffaceable, call for no despair, but for efforts more energetic than before. Repentance is still as valid as ever ; but it is valid to se¬
cure the Future, not to obliterate the Past.

Even the pulsations of the air, once set in motion by the human voice, cease not to exist with the sounds to which they gave rise. Their quickly-attenuated force soon becomes inaudible to human ears. But the waves of air thus raised perambulate the surface of earth and ocean, and in less than twenty hours, every atom of the atmosphere takes up the altered movement due to that infinitesi¬
mal portion of primitive motion which has been conveyed to it

through countless channels, and which must continue to influence its path throughout its future existence. The air is one vast library, on whose pages i$ forever written all that man has ever said or even whispered. There, in their mutable, but unerring characters, mixed with the earliest, as well as the latest signs of mortality, stand forever recorded, vows unredeemed, promises un¬
fulfilled; perpetuating, in the movements of each particle, all in unison, the testimony of man’s changeful will. God reads that book, though we cannot.

So earth, air, and ocean are the eternal witnesses of the acts that we have done. No motion impressed by natural causes or by human agency is ever obliterated. The track of every keel which has ever disturbed the surface of the ocean remains forever regis¬
tered in the future movements of all succeeding particles which may occupy its place. Every criminal is by the laws of the Al¬
mighty irrevocably chained to the testimony of his crime; for every atom of his mortal frame, through whatever changes its particles may migrate, will still retain, adhering to it through every combination, some movement derived from that very mus¬
cular effort by which the crime itself was perpetrated.

What if our faculties should be so enhanced in a future life as to enable us to perceive and trace the ineffaceable consequences of our idle words and evil deeds, and render our remorse and grief as eternal as those consequences themselves? No more fearful punishment to a superior intelligence can be conceived, than to see still in action, with the consciousness that it must continue in action forever, a cause of wrong put in motion by itself ages before.

Masonry, by its teachings, endeavors to restrain men from the commission of injustice and acts of wrong and outrage. Though it does not endeavor to usurp the place of religion, still its code of morals proceeds upon other principles than the municipal law ; and it condemns and punishes offences which neither that law punishes nor public opinion condemns. In the Masonic law, to cheat and overreach in trade, at the bar, in politics, are deemed no more venial than theft; nor a deliberate lie than perjury; nor

slander than robbery; nor seduction than murder.

Especially it condemns those wrongs of which the doer induces another to partake. He may repent ; he may, after agonizing struggles, regain the path of virtue; his spirit may reachieve its

purity through much anguish, after many strifes ; but the weaker fellow-creature whom he led astray, whom he made a sharer in his guilt, but whom he cannot make a sharer in his repentance and amendment, whose downward course (the first step of which he taught) he cannot check, but is compelled to witness, — what for¬giveness of sins can avail him there? There is his perpetual, his inevitable punishment, which no repentance can alleviate, and no mercy can remit.

Let us be just, also, in judging of other men's motives. We know but little of the real merits or demerits of any fellow-creature. We can rarely say with certainty that this man is more guilty than that, or even that this man is very good or very wicked. Often the basest men leave behind them excellent repu¬tations. There is scarcely one of us who has not, at some time in his life, been on the edge of the commission of a crime. Every one of us can look back, and shuddering see the time when our feet stood upon the slippery crags that overhung the abyss of guilt; and when, if temptation had been a little more urgent, or a little longer continued, if penury had pressed us a little harder, or a little more wine had further disturbed our intellect, dethroned our judgment, and aroused our passions, our feet would have slip¬ped, and we should have fallen, never to rise again.

We may be able to say — " This man has lied, has pilfered, has forged, has embezzled moneys intrusted to him ; and that man has gone through life with clean hands." But we cannot say that the former has not struggled long, though unsuccessfully, against temptations under which the second would have succumbed with¬out an effort. We can say which has the cleanest hands before man; but not which has the cleanest soul before God. We may be able to say, this man has committed adultery, and that man has been ever chaste; but we cannot tell but that the innocence of one may have been due to the coldness of his heart, to the ab¬sence of a motive, to the presence of a fear, to the slight degree of the temptation; nor but that the fall of the other may have been preceded by the most vehement self-contest, caused by the most over-mastering frenzy, and atoned for by the most hallowing repentance. Generosity as well as niggardliness may be a mere yielding to native temperament ; and in the eye of Heaven, a long life of beneficence in one man may have cost less effort, and may indicate less virtue and less sacrifice of interest, than a few rare

hidden acts of kindness wrung by duty out of the reluctant and

unsympathizing nature of the other. There may be more real merit, more self-sacrificing effort, more of the noblest elements of moral grandeur, in a life of failure, sin, and shame, than in a career, to our eyes, of stainless integrity.

When we condemn or pity the fallen, how do we know that, tempted like him, we should not have fallen like him, as soon, and perhaps with less resistance ? How can we know what we should do if we were out of employment, famine crouching, gaunt, and hungry, on our fireless hearth, and our children wailing for bread? We fall not because we are not enough tempted! He that hath fallen may be at heart as honest as we. How do we know that our daughter, sister, wife, could resist the abandonment, the desola¬ tion, the distress, the temptation, that sacrificed the virtue of their poor abandoned sister of shame? Perhaps they also have not fallen, because they have not been sorely tempted! Wisely are we directed to pray that we may not be exposed to temptation.

Human justice must be ever uncertain. How many judicial murders have been committed through ignorance of the phenom¬ ena of insanity ! How many men hung for murder who were nc more murderers at heart than the jury that tried and the judge that sentenced them ! It may well be doubted whether the ad¬ ministration of human laws, in every country, is not one gigantic mass of injustice and wrong. God seeth not as man seeth; and the most abandoned criminal, black as he is before the world, may yet have continued to keep some little light burning in a corner of his soul, which would long since have gone out in that of those who walk proudly in the sunshine of immaculate fame, if they had been tried and tempted like the poor outcast.

We do not know even the outside life of men. We are not com¬ petent to pronounce even on' their deeds. We do not know half the acts of wickedness or virtue, even of our most immediate fel¬ lows. We cannot say, with certainty,* even of our nearest friend, that he has not committed a particular sin, and broken a particu¬ lar commandment. Let each man ask his own heart! Of how many of our best and of our worst acts and qualities are our most intimate associates utterly unconscious ! How many virtues does not the world give us credit for, that we do not possess ; or vices condemn us for, of which we are not the slaves ! It is but a small portion of our evil deeds and thoughts that ever comes to light;

and of our few redeeming goodnesses, the largest portion is known to God alone.

We shall, therefore, be just in judging of other men, only when we are charitable; and we should assume the prerogative of judg¬ ing others only when the duty is forced upon us ; since we are so almost certain to err, and the consequences of error are so serious. No man need covet the office of judge; for in assuming it he as¬ sumes the gravest and most oppressive responsibility. Yet you have assumed it; we all assume it; for man is ever ready to judge, and ever ready to condemn his neighbor, while upon the same state of case he acquits himself. See, therefore, that you exercise your office cautiously and charitably, lest, in passing judgment upon

the criminal, you commit a greater wrong than that for which you condemn him, and the consequences of which must be eternal.

The faults and crimes and follies of other men are not unim¬portant to us; but form a part of our moral discipline. War and bloodshed at a distance, and frauds which do not affect our pecu¬niary interest, yet touch us in our feelings, and concern our moral welfare. They have much to do with all thoughtful hearts. The public eye may look unconcernedly on the miserable victim of vice, and that shattered wreck of a man may move the multitude to laughter or to scorn. But to the Mason, it is the form of sacred humanity that is before him; it is an erring fellow-being; a deso¬late, forlorn, forsaken soul ; and his thoughts, enfolding the poor wretch, will be far deeper than those of indifference, ridicule, or contempt. All human offences, the whole system of dishonesty, evasion, circumventing, forbidden indulgence, and intriguing am¬bition, in which men are struggling with each other, will be looked upon by a thoughtful Mason, not merely as a scene of mean toils and strifes, but as the solemn conflicts of immortal minds, for ends vast and momentous as their own being. It is a sad and unworthy strife, and may well be viewed with indignation; but that indig-nation must melt into pity. For the stakes for which these game¬sters play are not those which they imagine, not those which are in sight. For example, this man plays for a petty office, and gains it; but the real stake he gains is sycophancy, uncharitableness, slander, and deceit.

Good men are too proud of their goodness. They are respecta¬ble ; dishonor comes not near them ; their countenance has weight and influence ; their robes are unstained ; the poisonous breath of

calumny has never been breathed upon their fair name. How easy it is for them to look down with scorn upon the poor degraded offender ; to pass him by with a lofty step ; to draw up the folds of their garment around them, that they may not be soiled by his touch ! Yet the Great Master of Virtue did not so; but descended to familiar intercourse with publicans and sinners, with the Sa¬maritan woman, with the outcasts and the Pariahs of the Hebrew world.

Many men think themselves better, in proportion as they can detect sin in others ! When they go over the catalogue of their neighbor’s unhappy derelictions of temper or conduct, they often, amidst much apparent concern, feel a secret exultation, that destroys all their own pretensions to wisdom and moderation, and even to virtue. Many even take actual pleasure in the sins of others; and this is the case with every one whose thoughts are often employed in agreeable comparisons of his own virtues with his neighbors’ faults.

The power of gentleness is too little seen in the world; the sub¬duing influences of pity, the might of love, the control of mildness over -passion, the commanding majesty of that perfect character which mingles grave displeasure with grief and pity for the offend¬er. So it is that a Mason should treat his brethren who go astray. Not with bitterness ; nor yet with good-natured easiness, nor with worldly indifference, nor with the philosophic coldness, nor with a

laxity of conscience, that accounts everything well, that passes under the seal of public opinion; but with charity, with pitying loving-kindness.

The human heart will not bow willingly to what is infirm and wrong in human nature. If it yields to us, it must yield to what is divine in us. The wickedness of my neighbor cannot submit to my wickedness ; his sensuality, for instance, to my anger against his vices. My faults are not the instruments that are to arrest his faults. And therefore impatient reformers, and denouncing preachers, and hasty reprovers, and angry parents, and irritable relatives generally fail, in their several departments, to reclaim the erring.

A moral offence is sickness, pain, loss, dishonor, in the immor¬tal part of man. It is guilt, and misery added to guilt. It is itself
calamity ; and brings upon itself, in addition, the calamity of God’s disapproval, the abhorrence of all virtuous men, and the soul’s own

abhorrence. Deal faithfully, but patiently and tenderly, with this evil ! It is no matter for petty provocation, nor for personal strife, nor for selfish irritation.

Speak kindly to your erring brother ! God pities him : Christ has died for him : Providence waits for him : Heaven’s mercy yearns toward him; and Heaven’s spirits are ready to welcome him back with joy. Let your voice be in unison with all those powers that God is using for his recovery!

If one defrauds you, and exults at it, he is the most to be pitied of human beings. He has done himself a far deeper injury than he has done you. It is he, and not you, whom God regards with mingled displeasure and compassion; and His judgment should be your law. Among all the benedictions of the Holy Mount there is not one for this man; but for the merciful, the peace¬makers, and the persecuted they are poured out freely.

We are all men of like passions, propensities, and exposures. There are elements in us all, which might have been perverted, through the successive processes of moral deterioration, to the worst of crimes. The wretch whom the execration of the throng¬ing crowd pursues to the scaffold, is not worse than any one of that multitude might have become under similar circumstances. He is to be condemned indeed, but also deeply to be pitied.

It does not become the frail and sinful to be vindictive toward even the worst criminals. We owe much to the good Providence of God, ordaining for us a lot more favorable to virtue. We all had that within us, that might have been pushed to the same excess. Perhaps we should have fallen as he did, with less temptation. Per¬haps we have done acts, that, in proportion to the temptation or provocation, were less excusable than his great crime. Silent pity and sorrow for the victim should mingle with our detestation of the guilt. Even the pirate who murders in cold blood on the high seas, is such a man as you or I might have been. Orphanage in childhood, or base and dissolute and abandoned parents; an un¬

friended youth; evil companions; ignorance and want of moral cultivation ; the temptations of sinful pleasure or grinding pov¬erty; familiarity with vice; a scorned and blighted name; seared and crushed affections ; desperate fortunes ; these are steps that might have led any one among us to unfurl upon the high seas the bloody flag of universal defiance ; to wage war with our kind ; to live the life and die the death of the reckless and remorseless free-

booter. Many affecting relationships of humanity plead with us to pity him. His head once rested on a mother’s bosom. He was once the object of sisterly love and domestic endearment. Perhaps his hand, since often red with blood, once clasped another little loving hand at the altar. Pity him then; his blighted hopes and his crushed heart! It is proper that frail and erring creatures like us should do so; should feel the crime, but feel it as weak, tempted, and rescued creatures should. It may be that when God weighs men’s crimes, He will take into consideration the tempta¬tions and the adverse circumstances that led to them, and the op¬portunities for moral culture of the offender; and it may be that our own offences will weigh heavier than we think, and the mur¬derer’s lighter than according to man’s judgment.

On all accounts, therefore, let the true Mason never forget the solemn injunction, necessary to be observed at almost every mo¬ment of a busy life: “Judge not, lest ye yourselves be judged:

FOR WHATSOEVER JUDGMENT YE MEASURE UNTO OTHERS, THE SAME SHALL IN TURN BE MEASURED UNTO YOU.” Such is the lesson taught the Provost and Judge.